

SENATE BILL NO. 193

INTRODUCED BY J. TREBAS, M. NIKOLAKAKOS, D. EMRICH, G. NIKOLAKAKOS

A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING THAT THE ~~GOVERNOR~~ CHIEF JUSTICE OF THE MONTANA SUPREME COURT IS RESPONSIBLE FOR APPOINTING MEMBERS OF THE ATTORNEYS' EXAMINING BOARD; AND AMENDING SECTION 37-61-102, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 37-61-102, MCA, is amended to read:

"37-61-102. Attorneys' examining board -- appointment, quorum, and powers. (1) The ~~supreme court~~ ~~governor~~ CHIEF JUSTICE OF THE MONTANA SUPREME COURT shall appoint members of the bar of this state, in good standing, as an examining board to conduct and assist in conducting the examination of applicants for admission to the bar. The board may not exceed seven members. The ~~court~~ ~~governor~~ CHIEF JUSTICE may release, dismiss, or remove any member of the board and appoint other members at any time.

(2) A majority of the board is a quorum and may conduct examinations.

(3) The board shall perform the duties and render assistance in the examinations of applicants as prescribed by the ~~court~~ ~~governor~~ CHIEF JUSTICE and is governed and controlled by the rules that the ~~court~~ ~~governor~~ CHIEF JUSTICE may prescribe."

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